

The background of the entire page is a detailed topographic map. It features a complex network of contour lines in various shades of blue and purple, creating a sense of depth and texture. The lines are more densely packed in some areas, indicating steeper slopes, and more spread out in others, indicating flatter terrain. The overall effect is a rich, layered visual field that suggests a landscape of hills, valleys, and ridges.

LATITUDES EURAU26

*Situated reflections on
architectural research*

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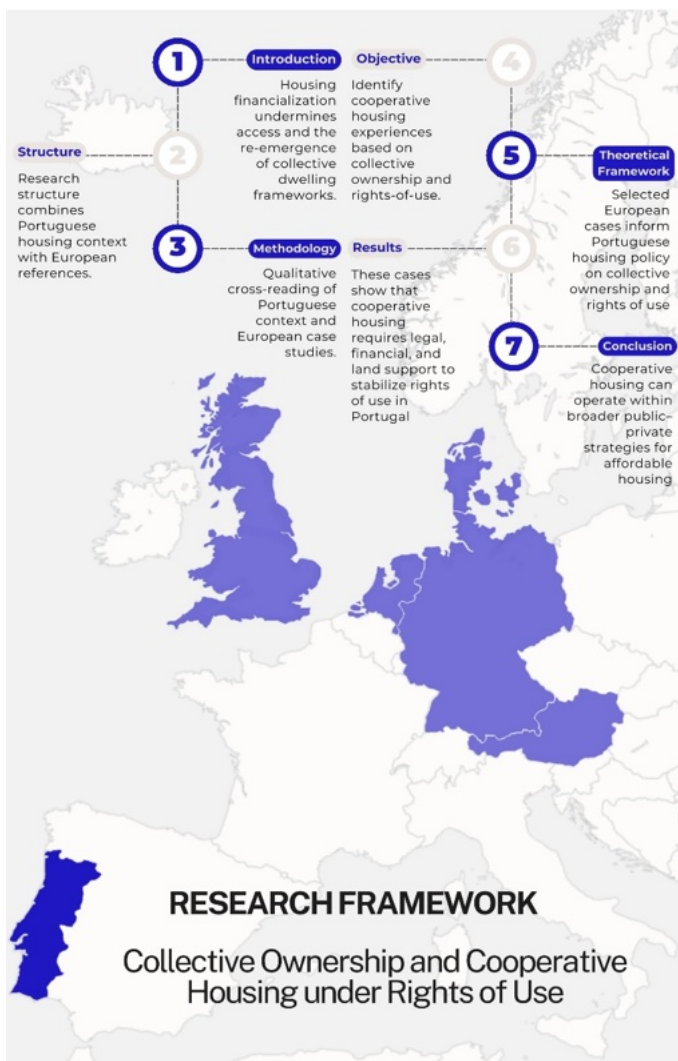


Fig. 1. Geographical Scope: Collective Ownership and Cooperative Housing under Rights of Use. Img. Marta Mações Viana 2026.

Collective Ownership and Cooperative Housing under Rights of Use. Non-Speculative Approaches to Affordable Housing in Portugal

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Across Europe, housing systems are undergoing a structural transformation as dwellings shift from social goods to financial assets, intensifying pressures on access, affordability, and long-term security. This shift has reinforced individual property regimes as the dominant framework for housing provision, narrowing the institutional space for collective forms of dwelling. However, these dynamics unfold differently across European latitudes, shaped by distinct property regimes, land governance structures, welfare configurations, and tenure cultures.

In Portugal, housing provision has long been structured around individual homeownership, supported by mortgage-based finance and limited public alternatives. Against this backdrop, initiatives such as *Cooperativas 1.ª Habitação*, promoted by the Lisbon Municipality since 2024 (CML, 2024), signal renewed attempts to reintroduce cooperative housing models based on public land retention and collective rights of use.⁸² Emerging in a context of real estate price escalation these initiatives raise a central question: can cooperative housing function within long-term public-private

⁸² This proposal is developed within an ongoing PhD research project, initiated in 2025 and supported by FCT, supervised by G. Lameira and R. J. G. Ramos.

strategies to stabilize access to housing under market pressure?

To address this question, the research analyzes the Portuguese housing context alongside selected European experiences through a qualitative cross-reading of bibliographic sources. It identifies cooperative housing models based on collective ownership and examines how regulatory instruments translate into governmental measures securing affordability under collective tenure. The analysis focuses on three transferable principles: stabilizing land through public or collective control, restricting profit distribution, and using regulatory guarantees to secure long-term affordability, adapted to the historical, institutional, and socio-economic conditions of each latitude.

In this sense, the *non-speculative potential* of cooperative housing under rights of use lies in hybrid public–private arrangements that separate land ownership from housing use, challenging the alignment between housing provision and individual accumulation. By anchoring land within the public frameworks and restricting profit extraction, these arrangements aim to stabilize long-term access and reduce exposure to speculative dynamics. Their effectiveness depends on institutional conditions such as municipal land, financial regulation or fiscal instruments.

Within this framework, the Portuguese case offers a critical latitude that illustrates how these institutional conditions influence the development of cooperative housing. Although cooperative legislation dates to the nineteenth century (Meira, Ramos, 2025, 16), housing cooperatives remained marginal throughout much of the twentieth century, particularly under the Estado Novo regime. This marginality reflects institutional constraints and a persistent cultural preference for individual property ownership.

After the 1974 Revolution, cooperative housing gained visibility as a response to acute housing shortages. Programs such as SAAL (*Serviço de Apoio Ambulatório Local*) enabled collective approaches to housing production based on participation and public support, testing alternative relationships between residents, institutions, and the built environment, establishing a participatory precedent rooted in collective urban memory (Alexandre 2025, 27).

Following the consolidation of the democratic regime, Decree-Law 218/82 recognized two cooperative property regimes: collective ownership and individual ownership. In the collective model, ownership is indivisible and retained by the cooperative, while members hold only rights of use. This system was adopted in a limited number of cases, primarily among post-SAAL cooperatives and those affiliated with UCHEDES⁸³ (Domingues, Matos, Leite, 2002, 41).

Despite legal recognition of collective ownership, individual ownership ultimately prevailed. In contrast to Northern and Central European latitudes – some with stronger rental traditions, municipal land control, and regulatory continuity enabled collective tenure to consolidate – Portugal’s ownership-oriented culture and financial structure limited the diffusion of non-speculative cooperative models.

Beyond the Portuguese case, several European contexts provide relevant reference points for understanding how cooperative and co-housing strategies have been institutionally supported. In Germany, the *Mietshäuser Syndikat* stands out as a network of self-managed housing projects whose ownership structure prevents the re-commodification of real estate by combining local resident control with supra-local collective oversight (Lacol, La Ciutat Invisible, 2025, 31).

In Austria, limited-profit housing associations (*gemeinnützig*) have developed a substantial share of the housing stock with public financial support. These associations manage or own approximately 40% of all rental housing, corresponding to around 20% of the total housing stock. Access is structured through regulated use rather than individual ownership, illustrating how long-term affordability can be maintained through non-profit frameworks combined with strong public regulation (Baiges, Ferreri, Vidal, 2019, 45).

In Denmark, the common housing sector (*Almen*) represents about 20% of the national housing stock and is organized through a federation of non-profit housing associations supported by

⁸³ *União das Cooperativas de Habitação Económica do Distrito de Setúbal*

municipalities. Alongside this sector, approximately 10,000 private housing cooperatives (*Andel*), representing around 8% of the housing stock, operate through collective ownership with legally regulated shares. Recent changes in the *Andel* sector – particularly the liberalization of initial capital values – have raised concerns regarding declining accessibility (Baiges, Ferreri, Vidal, 2019, 53).

The Netherlands provide another relevant reference, particularly in Amsterdam, where municipal owns approximately 80% of the land, combined with long-term leasehold systems, enables a clear separation between land ownership and housing use. This structure has supported cooperative and collective housing initiatives while limiting speculative dynamics associated with land ownership (Baiges, Ferreri, Vidal, 2019, 74).

In the United Kingdom, renewed public funding since 2016 has supported community-led and cooperative housing initiatives based on long-term leaseholds and collective ownership structures. These programs aim to secure long-term affordability while limiting privatization, although their scale remains modest within the wider housing system (Baiges, Ferreri, Vidal, 2019, 99).

Taken together, these cases demonstrate that cooperative and rights-of-use models respond differently across latitudes according to specific land regimes, welfare structures and cultural norms – therefore adaptive rather than prescriptive. Their implementation requires alignment with local institutional frameworks and socio-cultural expectations.

In the Portuguese case, where a cooperative legal framework already exists, the challenge lies not in importing foreign models but in recalibrating these principles with local conditions. This may involve strengthening municipal land strategies, aligning credit mechanisms with collective tenure structures, reinforcing state-backed guarantees, and gradually expanding institutional support compatible with an ownership-oriented housing culture.

This research argues that cooperative housing should be understood, within long-term public–private strategies for affordable housing, neither as a marginal alternative nor as a stand-

alone solution, but as one component in a broader assemblage of housing instruments. When integrated with wider housing policies and public intervention, cooperative models can help stabilize access, constrain speculative market dynamics and redistribute responsibility for housing provision and management operating within the regulatory and cultural conditions of the Portuguese latitude.

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This publication is dedicated to the ones dreaming every day in a better world.